

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Cooper	Team: Squad #07	CCRB Case #: 201604452	☐ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/17/2016 2:49 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/17/2017	Precinct: 48		
Date/Time CV Reported Tue, 05/17/2016 11:04 AM	CV Reported At: IAB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 05/23/2016 10:56 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Uvenio	19660	939623	048 PCT
2. POM Joseph Tobin	28621	939581	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Uvenio	Off. Language: Police Officer Joseph Uvenio made remarks to § 87(2)(b) based upon his perceived sexual orientation.	A . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On May 17, 2016, at approximately 2:49 a.m., § 87(2)(b) contacted 911 while inside his home located at § 87(2)(b) in the Bronx. During the call, § 87(2)(b) reported that he had been harassed by an unidentified male while inside the Fordham Road train station. PO Joseph Uvenio and PO Joseph Tobin from the 48th Precinct responded to § 87(2)(b)'s apartment. After speaking to PO Uvenio, § 87(2)(b) closed his front door. At this point, § 87(2)(b) allegedly heard PO Uvenio utter the word, "faggot" under his breath (**Allegation A**). There were no arrests or summons issued.

There is no video evidence for this case. § 87(2)(b) provided an audio recording of his interaction with officers, but it did not capture the FADO allegation. The embedded audio file is below.



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Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined mediation.
- As of June 22, 2016, a notice of claim inquiry is pending (Board Review 2).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Civilian and Officer Histories

- § 87(2)(b) has filed one previous complaint § 87(2)(b)
[REDACTED] § 87(2)(g)
[REDACTED]
- PO Uvenio has been a member of service for ten years and has been the subject of four allegations stemming from two cases, none which have been substantiated § 87(2)(g)
[REDACTED]
- PO Tobin has been a member of service for ten years and has been the subject of three allegations stemming from three cases, none which have been substantiated § 87(2)(g)
[REDACTED]

Findings and Recommendations

Allegation A- Offensive Language- Police Officer Joseph Uvenio made remarks to § 87(2)(b) based upon his perceived sexual orientation.

It is undisputed that § 87(2)(b) contacted 911 and claimed that he was harassed by a male at the train station. PO Uvenio arrived at § 87(2)(b)'s apartment and spoke to § 87(2)(b) in regards to his 911 call.

§ 87(2)(b) stated that during his interaction with PO Uvenio, he was visibly aggressive and annoyed but he denied that any officers commented on his demeanor. § 87(2)(b) stated that after he explained that he was harassed at the train station, PO Uvenio told him that as a matter of

Response	Percentage
Current administration	85%
Previous administration	15%

§ 87(4-b), § 87(2)(g)

[Redacted text block]

Squad:

Investigator: _____ Daniel Cooper _____
Signature Print Date

Squad Leader: _____ Diana Murray _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date